

HOUSE BILL 2638

By Barrett

AN ACT to amend Chapter 154 of the Private Acts of 1955; as amended by Chapter 158 of the Private Acts of 1988; Chapter 204 of the Private Acts of 1990; and any other acts amendatory thereto, relative to the City of Charlotte.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter 154 of the Private Acts of 1955, and any other acts amendatory thereto, is amended by deleting Section 1.02(i) and substituting:

(i) "Elector" shall mean a person who is residing within the city, or who is a nonresident qualified to vote therein because of ownership of property therein, to the exclusion of one (1) or more cemetery plots, amounting to at least fifty percent (50%) fee simple interest in the ownership of the piece of property, and who can provide a certified copy of the deed or a certified copy of the tax records that provides the name(s) of the owner(s) of the property.

SECTION 2. Chapter 154 of the Private Acts of 1955, and any other acts amendatory thereto, is amended by deleting Section 1.05(a) and substituting:

(a) To levy and provide for the assessment and collection of taxes on all property for taxation, and the rate will be for general purposes, exclusive of debt service.

SECTION 3. Chapter 154 of the Private Acts of 1955, and any other acts amendatory thereto, is amended by deleting Section 1.05(c) and substituting:

(c) [Deleted by 2026 Amendment.]

SECTION 4. Chapter 154 of the Private Acts of 1955, as amended by Chapter 204 of the Private Acts of 1990, and any other acts amendatory thereto, is amended by deleting Section 1.05(d) and substituting:

(d) To appropriate and borrow money to provide for payment of the debts of the City, and to authorize the expenditure of money for any municipal purpose.

SECTION 5. Chapter 154 of the Private Acts of 1955, and any other acts amendatory thereto, is amended by deleting Section 1.05(e) and substituting:

(e) To acquire, dispose of, and hold in trust or otherwise any real, personal, or mixed property, inside or outside the city, along with easements or limited property rights to such land, by purchase, gift, or condemnation, for public use, for present or future use by the City; to reserve industrial sites; to provide open spaces; to encourage the proper development of the community; or for the general welfare of the community.

SECTION 6. Chapter 154 of the Private Acts of 1955, and any other acts amendatory thereto, is amended by deleting Section 1.05(f) and substituting:

(f) [Deleted by 2026 Amendment.]

SECTION 7. Chapter 154 of the Private Acts of 1955, and any other acts amendatory thereto, is amended by deleting Section 1.05(j) and substituting:

(j) To provide for the acquisition, construction, building, operation, and maintenance of public ways, parks, public grounds, cemeteries, markets and market houses, public buildings, libraries, sewers, drains, sewage treatment plants, airports, hospitals, and charitable, educational, recreational, sport, curative, corrective, detention, penal, and medical institutions, agencies, and facilities, and any other public improvements and facilities, and any other public improvements inside or outside the City, and to regulate the use thereof, and for such purposes property may be either acquired or taken in accordance with applicable provisions of Tennessee Code Annotated.

SECTION 8. Chapter 154 of the Private Acts of 1955, and any other acts amendatory thereto, is amended by deleting Section 1.05(p) and (q) and substituting:

(p) [Deleted by 2026 Amendment.]

(q) [Deleted by 2026 Amendment.]

SECTION 9. Chapter 154 of the Private Acts of 1955, and any other acts amendatory thereto, is amended by deleting Section 1.05(w) and substituting:

(w) By ordinance, to fix and change the bounds and limits of the city and to provide for the extension of the said bounds and limits and the annexation of additional territory lying adjacent to the city, in accordance with applicable provisions of Tennessee Code Annotated.

SECTION 10. Chapter 154 of the Private Acts of 1955, and any other acts amendatory thereto, is amended by deleting Section 2.03 and substituting:

Section 2.03. City Council. Be it further enacted, That the Mayor and six (6) Councilmen shall compose the City Council, in which is vested all corporate legislative and other powers of the city, except as otherwise provided in this Act. The salaries of the members of the City Council for the town shall be funded by the City Council by ordinance establishing the annual budget; however, no increase or decrease to the salaries for the City Council may occur during the term of that respective City Council. The Council shall hold a regular monthly public meeting at a stated time and place, as provided by ordinance. The Council shall meet in special session on written call of the Mayor or any three (3) Councilmen and served on the other members personally or left at their residences at least forty-eight (48) hours in advance of the meeting. Except as authorized by state law, all meetings shall be public and adequate public notice shall be given. Only the business stated in the written call may be transacted at a special meeting. The Council shall exercise its powers only in public meetings. A majority of the Council shall constitute a quorum. The Council may by ordinance adopt rules and by-laws to govern the conduct of its business, including procedures and penalties for compelling attendance of absent members. The Council may subpoena and examine witnesses, to order the production of books and papers, and to have the same powers as a circuit court to punish for refusal to obey such an order or subpoena or for disorderly or contemptuous behavior in the presence of the Council. At the request of three (3) or more Council members, an item shall be added to the next agenda with adequate notice to be provided.

SECTION 11. Chapter 154 of the Private Acts of 1955, and any other acts amendatory thereto, is amended by deleting Section 2.08 and substituting:

Section 2.08. City Clerk. Be it further enacted, That the Mayor shall appoint a city clerk, who shall be responsible for keeping and preserving the city seal and all records of the Council; attending meetings of the Council; providing to the Mayor and Council a monthly financial statement in written format; keeping the minutes of the proceedings at such meetings, including the names of members present and absent, the vote of each member on each question, and each motion considered; preparing and certifying copies of official records in their office, for which fees may be prescribed by ordinance; and performing such other duties as shall be required by the Council or Mayor.

SECTION 12. Chapter 154 of the Private Acts of 1955, and any other acts amendatory thereto, is amended by deleting Section 2.11 and substituting:

Section 2.11. Codification of Ordinances. Be it further enacted, That at any time after this Act becomes effective there may be prepared, under the direction of the Mayor, a codification of all ordinances and resolutions having a regulatory effect or of general application which are to be continued in force. Existing ordinances and resolutions may be revised, amended, and consolidated in making the codifications, which shall then be adopted as a single ordinance to be known and cited as the Official Code of the city of Charlotte, and thereupon all ordinances and resolutions in conflict therewith shall be repealed. The ordinance containing the code need not be published in a newspaper, either in full or in abstracted form, but a notice of its adoption may be published once in the official city newspaper. The code may be reproduced in loose-leaf form and may be made available to any person desiring a copy, for which a reasonable fee may be charged. An additional annual fee may be charged for furnishing revisions currently. After adoption of the code, each ordinance may be adopted as a numbered section or sections of the code, as amending existing sections or adding new sections. Such new

ordinances may be integrated into the code, and at least once a month new pages may be reproduced to replace existing pages (with instructions to destroy existing pages) or to be added to the code, and may be distributed to city officers and employees having copies of the code. Notes may be inserted at the end of amended or new sections, referring to the dates and numbers of ordinances making the amendments or adding the new sections, and such references may be cumulative if a section is amended more than once in order that the current copy of the code will contain references to all ordinances passed since the adoption of the original code.

SECTION 13. Chapter 154 of the Private Acts of 1955, and any other acts amendatory thereto, is amended by deleting Section 3.02 and substituting:

3.02. Administrative Duties of Mayor. Be it further enacted, That the Mayor shall be the executive head of the city government, responsible for the efficient and orderly administration of the city's affairs. The Mayor shall be responsible for the enforcement of laws, rules and regulations, ordinances, and franchises in the city; and the City Attorney shall take such legal actions as the Mayor, with the approval of the City Council, may direct for such purposes. The Mayor shall have the authority to appoint, promote, demote, transfer, suspend and remove all officers and employees and to direct and control their work, except as otherwise provided in this Act. The Mayor shall submit to the Council annual budgets, regular reports, and such other information as they may deem necessary or the Council may require. If no other employee is designated as the purchasing agent, the Mayor shall act as purchasing agent for the city. The Mayor may conduct inquiries and investigations into the conduct of the city's affairs and shall have such other powers and duties as may be provided by ordinances not inconsistent with this Act.

SECTION 14. Chapter 154 of the Private Acts of 1955, and any other acts amendatory thereto, is amended by deleting Section 3.04 and substituting:

Section 3.04. City Court. Be it further enacted, That a city court, presided over by a city judge on a full- or part-time basis may be prescribed by ordinance and is hereby established, which shall have jurisdiction over violations of this Act and ordinances of the city. The city attorney, or assistant city attorney, may be the prosecuting officer of the court.

SECTION 15. Chapter 154 of the Private Acts of 1955, and any other acts amendatory thereto, is amended by deleting Section 3.05 and substituting:

Section 3.05. City Judge and City Court Clerk. Be it further enacted, That the Council may appoint and fix the salary of the city judge for terms of two (2) years, and such salary shall not be changed during a term of office. The Council may fill a vacancy in this office by appointment for the unexpired term. The city judge shall excuse himself from a case in which (a) he is interested, (b) he is related to the defendant by blood or marriage within the third degree, or (c) for any reason he believes that he will be prejudiced, and such a case, as well as cases during the absence or disability of the city judge, shall be heard and decided by an acting city judge appointed by the Mayor. The Mayor may remove the acting city judge at any time without cause. The compensation of an acting city judge shall be fixed by ordinance. The Council may authorize a city court clerk and other personnel to assist and to be appointed and removed by the city judge, to perform such duties as may be prescribed by ordinance or by the city judge.

SECTION 16. Chapter 154 of the Private Acts of 1955, and any other acts amendatory thereto, is amended by deleting Section 4.02 and substituting:

Section 4.02. Mayor to Submit Annual Budget. Be it further enacted, That on or before a date fixed by the Council but not later than forty-five (45) days prior to the beginning of each fiscal year, the Mayor shall submit to the Council a proposed budget for the next fiscal year, showing separately for the general fund, each utility, the school system (if there is a separate city school system), and each other fund the following: (a) revenue and expenditures during the preceding fiscal year, (b) appropriations and

estimated revenue and expenditures for the current fiscal year, (c) estimated revenue and recommended expenditures for the next fiscal year, (d) a comparative statement of the assets, liabilities, reserves, and surplus at the end of the preceding year and estimated assets, liabilities, reserves, and surplus at the end of the current fiscal year, and (e) such other information and data, such as work programs and unit costs, in justification of recommended expenditures, as may be considered necessary by the Mayor or requested by the Council. The Mayor may recommend and estimate additional revenue measures, provided such estimates are separated clearly from normal revenue estimates. The budget may be accompanied by a message from the Mayor containing a statement of the general fiscal policies of the city, the important features of the budget, explanations of major changes recommended for the next fiscal year as compared with the current fiscal year, a general summary of the budget and such other comments and information as he may deem pertinent. A sufficient number of copies of the Mayor's message may be reproduced to furnish a copy to any person desiring one, and a copy of the budget in full may be filed with the Council and furnished to each Councilmember.

SECTION 17. Chapter 154 of the Private Acts of 1955, as amended by Chapter 158 of the Private Acts of 1988, and any other acts amendatory thereto, is amended by deleting Section 4.06 and substituting:

Section 4.06. Centralized Purchasing. Be it further enacted, That all contracts and purchases, except those that may be reserved to the Council by ordinance, shall be made by the city purchasing agent, who shall be the Mayor or an employee appointed by him. As prescribed by ordinance, an award shall be made to the lowest and best bidder; provided, that bids need not be required for professional services or for services for which the rates or prices are regulated by public authority. Competition by bids shall not be required for the purchase of equipment, materials, or supplies from any other governmental agency.

SECTION 18. Chapter 154 of the Private Acts of 1955, and any other acts amendatory thereto, is amended by deleting Section 4.08 and substituting:

Section 4.08. Annual Audit. Be it further enacted, That the Council may employ a certified public accountant to make an annual audit of all financial books and records of the city. The accountant shall file his report with the Council, at a time agreed to between him and the Council, and shall prepare a summary of the report which may be published.

SECTION 19. Chapter 154 of the Private Acts of 1955, and any other acts amendatory thereto, is amended by deleting Section 4.17.

SECTION 20. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of the City of Charlotte. Its approval or nonapproval shall be proclaimed by the presiding officer of the legislative body and certified to the secretary of state.

SECTION 21. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming a law, the public welfare requiring it. For all other purposes, it shall become effective as provided in Section 20, the public welfare requiring it.